

DPDPA and GDPR: A Comparative Assessment of Scope, Rights, Accountability and Enforcement

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ABSTRACT

The rapid growth of the internet, artificial intelligence, and digital databases has led to extensive collection and processing of personal data, creating a growing need for effective data protection frameworks. In this context, this paper provides a comparative study of India's Digital Personal Data Protection Act, 2023 (DPDPA) and the European Union's General Data Protection Regulation (GDPR). The study examines whether the DPDPA provides a level of data protection comparable to the GDPR, which is widely regarded as a significant benchmark in the field of data privacy. A doctrinal, analytical, and comparative legal approach is adopted by examining the provisions of both frameworks along with relevant official materials, scholarly literature, books, and reports. The comparison is carried out on four parameters: data processing, individual rights, obligations and accountability, and enforcement and penalties. The study finds that both frameworks provide a structured basis for regulating personal data and recognise the importance of individual control over personal information. However, significant differences exist in their scope and level of protection. The GDPR has a wider scope, covering both digital and non-digital personal data, and provides individuals with broader rights, including the right to data portability, objection to processing, restriction of processing, and safeguards relating to automated decision-making and profiling. The DPDPA, while introducing important protections in India, follows a comparatively narrower and more compliance-oriented framework. Differences are also observed in regulatory powers and the approach to penalties, with the GDPR providing broader regulatory oversight and turnover-linked penalties. The study concludes that although the DPDPA marks an important development in India's data protection regime, it does not yet provide protection comparable to the GDPR across the parameters examined and may require further legislative development.

Introduction

With the rise of the internet and AI, there is a rise in huge databases. The main reasons for this rapid change to a data-driven world are the rise of the internet and Google in the 1990s. The recording of data dates back to the 1640s, when John Graunt used data analysis of recording people deaths in London. In 1665, he published his book, *Natural and Political Observations Mentioned in a Following Index, and made upon the Bills of Mortality*, as the collective result of his research ¹. Thus began the modern age of data collection and data processing. Data has shifted from a mere record to a modern-day oil; this billion-dollar industry has rapidly become one of the most heavily invested sectors.

The extensive collection and processing of individual data have led to an immense need for regulation of such data. The concept of data protection is the practice of safeguarding sensitive information from data loss and corruption. Its goal is to ensure that data is secure and compliant with the country's regulations ². The General Data Protection Regulation (GDPR) is the data protection regulation affecting all EU states and any entity providing services to its citizens. The act came into force in May 2018; it set the global standard for all data protection laws that followed.

India passed the Digital Personal Data Protection Act in August 2023. The Act was passed after two major legal milestones in the country. The first was the case of *Justice K.S. Puttaswamy (Retd) vs Union of India* ³, in which a 9-judge bench of the Supreme Court of India unanimously declared the **Right to Privacy as a Fundamental Right** under Part III of the Indian Constitution. The verdict was followed by the formation of a committee known as the **Sri Krishna Committee**, whose objective was to design a comprehensive legal framework for data protection and privacy in India. Its report ⁴ laid out various key suggestions which were implemented in DPDPA. As a globalised economy, it is important to understand how well DPDPA fares in comparison to GDPR, which is considered the global standard for data privacy and protection.

1. Sophie Magnet, *History of Data: Ancient Times to Modern Day – 365 Data Science*, (June 1, 2022), <https://365datascience.com/trending/history-of-data/>.

2. Annie Badman, *What is Data Protection?* | IBM, (Dec. 10, 2024), <https://www.ibm.com/think/topics/data-protection>.

3. *Justice K.S. Puttaswamy (Retd) vs Union of India* 2019 (1) SCC 1

4. *Ministry of Home Affairs*, Government of India (Aug. 30, 2022), <https://www.mha.gov.in/en/about-us/commissions-committees/ccsap-justice-ret-d-b-n-srikrishna-report>.

METHODOLOGY

The paper aims at understanding to what extent the Digital Personal Data Protection Act, 2023⁵ provides a data protection framework comparable to the European Union's GDPR⁶. This study adopts a doctrinal, analytical, comparative legal study. It examines the provisions of the DPDPA and the GDPR, along with official materials. The secondary sources of references includes scholar materials, books, and reports for me to gain an understanding of the legal provisions.

The paper is aimed at four main comparative parameters as stated below:

- Data Processing
- Individual rights
- Obligations and regulations
- Enforcement and penalties

The comparative analysis between the legislation is to ascertain the level of data protection provided by DPDPA in comparison to GDPR. The scope of this study is limited to these four parameters only. The limited study of legislation will be restricted to GDPR and DPDPA. It does not cover any empirical or practical survey in its effectiveness or reach of the legal provisions. Further, aspects such as sector-specific data regulation and detailed cross-border data transfer mechanisms fall outside the scope of the study.

LITERATURE REVIEW

The existing literature on the acts provided me with an interesting overview of both acts. It helped me gain an understanding of the core of these respective legislations. The existing literature on GDPR identifies a dual constitutional right to privacy and protection⁷. The separation of the rights under GDPR is backed by judicial precedents such as the *Ireland Digital Rights case*⁸. This dual concept is enshrined under Articles 7 and 8 CFR⁹. Upon further study, I

5. *Dpdpa*, Comprehensive Guide to Digital Personal Data Prote <https://www.dpdpa.com/>.

6. *General Data Protection Regulation (GDPR)*, GDPR-Info.eu, <https://gdpr-info.eu/>

7. Paul Voigt & Axel von dem Bussche, *The EU General Data Protection Regulation (GDPR): A Practical Guide* (2017).

broke down the core aspects of GDPR under Articles 5 and 6, codifying the Fair Information Practices (FIPs) as cumulative principles—such as purpose limitation, data minimisation, storage limitation, and accuracy—which must all be satisfied for processing to be lawful¹⁰. Existing literature provided an exemplary understanding of proactive compliance and enforcement mechanisms of GDPR.

Despite limited literature on a fairly new text, there was extensive literature on DPDPA, which is applied to the subcontinent of India. The DPDPA operates as a complete overhaul of India's previous, fractured data privacy regime, replacing the older regulations under the Information Technology Act, 2000¹¹. A core characteristic of the DPDPA's legal structure is its usage of legal terms away from traditional privacy terminology. Existing research shows that, rather than employing the European "Data Controller" concept, the Indian legislature adopted the term "Data Fiduciary" to define any entity determining the purpose and means of personal data processing¹². Subordinate to the Data Fiduciary is the "Data Processor", who processes personal data strictly on behalf of the fiduciary¹². Research shows that while GDPR takes an all-round approach to personal data (either digital or non-digital), all come under its purview; in contrast, DPDPA has a narrower concept which restricts itself to digital personal data only (This includes subsequent digitalised information)¹³.

The reviewed literature demonstrates the difference in structure of both frameworks and their doctrine. This research is to determine if DPDPA provides a similar level of protection in comparison to GDPR, in respected to the four limited parameters: Data processing, Individual rights, obligations and accountability, and enforcement and penalties.

8. Joined Cases C-293/12 & C-594/12, *Digital Rights Ireland Ltd v. Minister for Communications, Marine and Natural Resources*, ECLI:EU:C:2014:238 (Apr. 8, 2014).

9. Maja Brkan, *The Essence of the Fundamental Rights to Privacy and Data Protection: Finding the Way through the Maze of the CJEU's Constitutional Reasoning* (May 17, 2018) (unpublished manuscript), <https://ssrn.com/abstract=3325267>.

10. Chris Jay Hoofnagle, Bart van der Sloot & Frederik Zuiderveen Borgesius, *The European Union General Data Protection Regulation: What It Is and What It Means*, 28 Info. & Comm. Tech. L. 65 (2019).

11. Virgilio Emanuel Lobato Cervantes, *Data Protection by Design and Default: A Novel Business Compliance Framework for Effective Adherence to EU General Data Protection Regulation (GDPR)* (June 2023) (Ph.D. dissertation, University of Reading) (on file with CentAUR, University of Reading).

12. The Digital Personal Data Protection Act, 2023, No. 22, Acts of Parliament, 2023 (India).

13. *DPDPA 2023: Digital Personal Data Protection Act Guide*, King Stubb & Kasiva (Aug. 11, 2026), <https://ksandk.com/privacy-review/guides/dpdpa/>.

COMPARATIVE ANALYSIS

According to my methodology, I will be comparing both frameworks on the fixed parameters:

Data processing

I have compared the scope, data processing, and legitimate interests between both frameworks.

Scope of frameworks

- ❖ GDPR takes an omnibus scope of personal data; it covers both digital and non-digital data. This covers both digital records and manual scripts (this includes physical paper records, filing cabinets, and manual registers) fall squarely under the GDPR's statutory obligations. In comparison, DPDPA takes a digital-only approach where it covers only personal data that is in digital form or any personal data digitalised.
- ❖ GDPR has a broad territorial scope; it applies to all EU states and organisations. It also applies to any organisation processing EU data or where the processing relates to either the offering of goods or services to individuals in the EU or the monitoring of their behaviour within the EU. DPDPA covers a similar processing scope in India, although it does not extend to the process of behavioural monitoring.

Lawful Data Processing and legitimate intrests

- ❖ GDPR strictly prohibits data processing unless it falls under one of the 6 legal bases under Article 6 ¹⁴. They are consent, contractual necessity, legal obligation of the controller, vital interests, public interest, and legitimate interests.
- ❖ DPDPA uses a strict consent-driven model, in which data can be processed only with consent or for a legitimate purpose. Legitimate purpose falls under section 7¹⁵; it includes voluntary, state functions, national security, statutory obligations, and medical emergencies.
- ❖ In GDPR, data processing occurs on legitimate interests; the controller must be transparent about the legal basis and the legitimate use for which the data has been collected.

14. *General Data Protection Regulation (GDPR)*, GDPR-Info.eu, <https://gdpr-info.eu/>

15. *DPDPA 2023: Digital Personal Data Protection Act Guide*, King Stubb & Kasiva (Aug. 11, 2026), <https://ksandk.com/privacy-review/guides/dpdpa/>.

- ❖ In comparison, DPDPA has a narrower statutory model, whereby state welfare. Unlike under the GDPR, the data principal cannot object to the processing of the data. Since their consent while giving data also carries a clause for processing of data too.

Individual rights

- ❖ Both GDPR and DPDPA use a foundation of individual control, although their terminologies may vary. GDPR uses Data subject in comparison to DPDPA, which uses Data principal.
- ❖ **The right to be informed** under GDPR is enshrined in Articles 13 and 14, which require data controllers to provide information regarding the purposes of processing, the legal basis, and the data retention period before or during data collection. In DPDPA, the information is processed similarly, but an itemized summary of how the data is used and shared must be provided. In addition to that, it must be noted that the privacy notice must be accessible in English or any of the 22 scheduled languages of the Indian Constitution.
- ❖ **The right to access** is given to data fiduciaries under DPDPA (Section 11) to allow them to request details of processed personal data and third-party sharing. In contrast, GDPR (Article 15) grants data fiduciaries the right to know if their data is processed, and they can also ask for a copy of their personal data and the recipients too, without incurring any additional costs.
- ❖ **Right to correction** is provided under both DPDPA (section 12) and GDPR (Article 16), which allows them to rectify any mistakes, incomplete data, or update their outdated data.
- ❖ **Right to Erasure** under GDPR (Article 17) allows data subjects to demand data deletion under specific grounds, when consent is withdrawn, or processing is unlawful, subject to exceptions like public health or freedom of expression. DPDPA (section 12) allows consent-driven personal data to be erased, but this can be overtaken by statutory regulations which require data retention, such as AML, Banking regulations, etc. Both the frameworks allows right to withdraw consent at any time period, with comparable ease.
- ❖ **Exclusive Rights**
GDPR provides certain exclusive rights which are not provided under DPDPA. These rights include rights to data portability (Article 20), right to object to processing (Article

21), rights to restriction of processing (Article 18), right to automated decision making and profiling (Article 22) ¹⁶. These rights provide more control to the data subject in regard to their personal data. **DPDPA** also has a certain exclusive nature to its framework, mainly the right to grievance redressal (section 13) and right to nomination (section 14) ¹⁷.

GDPR is a one-dimensional responsibility, where the individual is given rights and all compliance and obligations fall upon the corporate controllers and processors. It has more broad scope on individuals' rights and protection of their data. DPDPA has a dual accountability framework where even the data principals have responsibilities along with controllers and processors, including penalties ¹⁸. GDPR has a more complex framework regarding individuals' rights, while DPDPA is more compliance-friendly for entities.

Obligations and accountability

- ❖ In GDPR, the controller is responsible for complying with FIPs and demonstrating compliance to statutory authorities. They must also maintain a ROPA mentioned under Article 30 of GDPR. DPDPA comparatively expects similar compliance, where they are responsible for ensuring statutory compliance, irrespective of any private agreements with the Data Principal to perform their respective duties.
- ❖ The GDPR requires controllers to use privacy safeguards in the technological and organisational design of processing through Article 25. The DPDPA framework, in contrast, places greater emphasis on digitising the mechanisms through which compliance is administered, including notices, consent and grievance redressal.
- ❖ GDPR and DPDPA both mandate a report of breach within 72 hours to the appropriate authority. DPDPA mandates that every breach requires the information to be disclosed to

16. Virgílio Emanuel Lobato Cervantes, *Data Protection by Design and Default: A Novel Business Compliance Framework for Effective Adherence to EU General Data Protection Regulation (GDPR)* (June 2023) (Ph.D. dissertation, University of Reading) (on file with CentAUR, University of Reading), https://centaur.reading.ac.uk/116933/1/Cervantes_Thesis_Redacted.pdf.

17. Press Information Bureau, *DPDP Rules, 2025 Notified: A Citizen-Centric Framework for Privacy Protection and Responsible Data Use*, Ministry of Electronics & Information Technology, Government of India (Nov. 17, 2025), <https://static.pib.gov.in/WriteReadData/specificdocs/documents/2025/nov/doc20251117695301.pdf>.

18. *DPDPA 2023: Digital Personal Data Protection Act Guide*, King Stubb & Kasiva (Aug. 11, 2026), <https://ksandk.com/privacy-review/guides/dpdpa/>.

the individual; in the case of GDPR, only cases of high threat to the individual's freedom and rights.

- ❖ Both GDPR and DPDPA require valid, prior written contracts for the processing of data, but under GDPR, the controller must be consented to regarding subprocessing of data (Article 28).

Enforcement and penalties

- ❖ DPDPA follows a fixed cap model, where the penalties are fixed statutory limits for specific categories which are applied irrespective of the organisation's size or financial revenue. The board determines the penalties based on the factors of the breach. In contrast, GDPR follows a turnover-linked penalty system, where the penalties are directly in relation to the percentage of the parent company's total worldwide annual turnover of the previous financial year.
- ❖ The Highest penalties that can be applied under DPDPA are up to 250 crores (€22.37 million). GDPR, in comparison, can have 2 to 4 percent of total global turnover from the previous financial year. The biggest penalty imposed by GDPR was in *Data Protection Commission v. Meta Platforms Ireland Ltd*¹⁹, which imposed a staggering amount of **€1.2 billion**.
- ❖ Data Protection Board in India acts strictly as an adjudicator of disputes. Subordinate rule-making and policymaking remain the exclusive domain of MeitY and the Central Government. DPA's in the EU possess broad, proactive regulatory, policy, advisory and investigatory powers.
- ❖ DPDPA allows appeals to Telecom Disputes Settlement Tribunal (TDST) against the decisions of DPBI (section 29). DPDPA allows ADR features (section 31), where the board can ask the parties to attempt mediation. DPBI allows voluntary from fiduciaries under section 32. In GDPR, disputes are appealed through the respective national judicial courts of the member state, with final referrals on the interpretation of EU law resolved before the Court of Justice of the European Union (CJEU). It has no ADR frameworks; it relies on conventional legal systems.

- ❖ In GDPR, an individual can bring criminal liability in accordance with the national law of the respective member states in case of severe data protection violations. While DPDPA has no criminal liabilities, it has a certain framework known as “Digital Death” (section 37) where a data fiduciary has been penalised twice or more by the DPBI, the board can direct the central government to block all access to the electronic platform in the public domain in the interest of the general public.

CONCLUSION

The comparative analysis of both frameworks leads to a better understanding of the protection mechanisms and scope of the acts. To answer the question, does DPDPA provide a protection level similar to GDPR on a global scale, the simple answer is no. To understand why this conclusion has been drawn, I will take you through each parameter in this study. The scope of GDPR is comparatively wider than DPDPA; this ensures wider protection of data. DPDPA also exempts public bodies in the case of data retention, but GDPR is equally applicable to public bodies, thus ensuring more stringent protection of data. DPDPA lacks so many individual rights in comparison to GDPR; it provides basic rights, but core rights such as processing restriction rights are not included in the framework, making it much weaker for individuals to control their data footprint.

DPDPA uses a blacklist model of cross-border transfers, which is comparatively lax in comparison to GDPR's whitelist model. DPB of India has a limited role as an adjudicator and not a proactive regulator. DPA's of the EU are much more active regulators in the case of data protection; they act as watchdogs and have investigatory powers. The enforcement body of the DPDPA again falls short of GDPR. Concerning penalties, DPDPA has very minimal fines in comparison to GDPR. The penalties are capped at € 22 million (250 crore) under DPDPA; that might be a 'slap on the wrist' to certain data fiduciaries, whereas GDPR's turnover penalties can cause bankruptcy to some firms. While DPDPA's enforcement is an advancement in the field of data protection for India, it requires further legislative development to gain comprehensive protection to be comparable to GDPR.

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